

23AVCV00478 23AVCV00478

County: los-angeles

Division: Civil Law and Motion

Department: A14

Hearing date: 2026-08-14

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Case Number: 23AVCV00478 Hearing Date: August 14, 2026 Dept: A14

23AVCV00478 KAREN M. SMITH vs COUNTY OF LOS
ANGELES

Rulings on Contested Motions in Limine.

The following are the Court's rulings on the parties'

Motions in Limine ("MILs"). Because the following rulings on the motions in limine are based upon evidence known at the present time, these rulings are only tentative and may be subject to change as the evidence unfolds. (See Scott v. C.R. Bard, Inc. (2014) 231 Cal.App.4th 763.) For this reason, all rulings are made without prejudice unless expressly stated otherwise.

PLAINTIFF'S MOTION IN LIMINE NO. 1 TO EXCLUDE ANY MENTION OF PLAINTIFF'S PRE-EXISTING HEALTH CONDITIONS.

Ruling. DENIED. The Motion does not identify with particularity evidence to be excluded. (Kelly v. New West Federal Savings (1996) 49 Cal. App. 4th 659). The Court cannot say that the category of evidence is per se excludable.

PLAINTIFF'S MOTION IN LIMINE NO. 2 TO EXCLUDE ANY EVIDENCE NOT PRODUCED PRIOR TO THE DISCOVERY CUT-OFF.

Ruling. DENIED. The Motion does not identify with particularity evidence to be excluded. (Kelly v. New West Federal Savings (1996) 49 Cal. App. 4th 659). The Court cannot say that the category of evidence is per se excludable. Depending on the scope of discovery requests, certain

evidence may not be responsive – and thus subject to production – to any requests propounded.

PLAINTIFF'S MOTION IN LIMINE NO. 3 TO EXCLUDE SURVEILLANCE
FOOTAGE TAKEN OF PLAINTIFF

Ruling. DENIED. The Motion does not identify with particularity evidence to be excluded. (Kelly v. New West Federal Savings (1996) 49 Cal. App. 4th 659). Indeed, neither party is claiming the sub rosa footage exists.

If Defendant does have post-discovery sub rosa footage that is offered for impeachment, the Court will consider the admissibility of such evidence at the time it is offered.

Defense MILs:

NO. 1 TO PRECLUDE
PLAINTIFF AND PLAINTIFF'S WITNESSES FROM OFFERING EVIDENCE REGARDING THE
POST-INCIDENT STATE OF THE PARKING LOT.

Ruling. DENIED. Any concern that the jury could conflate photographs taken in 2021 with those taken during the 2025 inspection does not present a substantial danger of confusion within the meaning of Evidence Code section 352. Defendant is free to cross-examine Mr. Suway on the bases for his opinion that the current state of the parking lot is similar to its condition at the time of the incident.

DEFENDANT'S MOTION IN LIMINE NO. 2 TO PRECLUDE EVIDENCE
RELATED TO AREAS OF THE SUBJECT PARKING LOT THAT WERE NOT INVOLVED IN THE
INCIDENT.

Ruling. GRANTED. The issue to be tried is whether the area where Plaintiff tripped was a dangerous condition, and Defendant's actual or constructive notice of that condition. The condition of other areas of the parking lot is of minimal probative value, and that value is substantially outweighed by probability that admission of such evidence will create undue prejudice, confusion of the issues, and mislead the jury. (Evidence Code Section 352.) Further, admission will cause undue consumption of the jury's time.